



Appeal Decision

Site visit made on 2 June 2026

by R Gee BA (Hons) Dip TP PGCert UD MRTPI

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal Ref: 6005970

Land south of Litcham Road, Mileham PE32 2PU

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by James Bunn against the decision of Breckland Council.
 - The application Ref is PL/2025/1130/OMIN.
 - The development proposed is Construction of 6 new dwellings including affordable units.
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Decision

1. The appeal is allowed and planning permission is granted for construction of 6 new dwellings including affordable units at Land south of Litcham Road, Mileham PE32 2PU in accordance with the terms of the application, Ref PL/2025/1130/OMIN, subject to the conditions in the attached schedule.

Preliminary Matters

2. The appeal proposal seeks planning permission in outline form with all matters reserved for future consideration. I have had regard to the site location plan, access drawings and the indicative layout but have regarded all elements of these drawings as indicative.
3. My attention has been drawn to a previous appeal at the site¹. While there are similarities between the proposals, the material circumstances differ, including the Council's housing land supply position and the Policy context. Although the earlier decision is a material consideration, I have reached my own conclusions based on the merits of the current proposal.
4. On 17 August 2026 a new Framework was published. As this could affect the issues and matters in this case, the Council and the appellant were invited to make further comments. My decision reflects the latest version of the Framework, and the responses received on it.

Main Issues

5. The main issues are:
 - i) whether the site is an appropriate location for a residential development, with particular regard to the spatial strategy and accessibility of services and facilities;
 - ii) the effect of the proposal on character and appearance;

¹ Appeal Ref: APP/F2605/W/24/3336631

- iii) the effect of the proposal on the integrity of habitats sites; and
- iv) if there is any harm, whether this is outweighed by other considerations.

Reasons

Location

6. The Council's spatial strategy is based on a settlement hierarchy defined in Policy GEN03 of the Breckland Local Plan (BLP). Settlements are categorised according to the availability of services and facilities. Most new development is directed towards towns and villages in the upper tiers of the hierarchy. The parties agree that the appeal site is located outside of a defined settlement.
7. Outside settlement boundaries, Policy GEN05 of the BLP allows for limited development, including housing compliant with Policy HOU05. This Policy in turn lists four qualifying criteria, all of which should be met. The first is that development must comprise sensitive infilling and rounding off a cluster of dwellings with access to the existing highway.
8. The appeal site forms part of a field. Near the appeal site the road is characterised by residential development fronting either side of the road. However, the appeal site and beyond, to the west towards Beeston Road, is undeveloped. Accordingly, the proposal would not meet the definition of infilling as defined in the BLP.
9. Rounding off, in the context of Policy HOU 05 is defined as the completion of an incomplete group of buildings on land which is already partially developed and in such a way which will either complete the local road pattern or define and complete the boundaries of the group. The proposal would replicate the pattern of built form further along the road to the east and that directly opposite. However, the appeal site is not partially developed, and an area of undeveloped land would remain up to the junction with Beeston Road. For these reasons, the proposal would not fulfil the definition of rounding off as set out in the BLP. Furthermore, the proposal would not meet other qualifying criteria in the BLP and consequently this draws the proposal into conflict with the Council's spatial strategy.
10. Mileham offers limited services, comprising a village shop, village hall, church and a bus service. The nearest bus stop is located almost opposite the appeal site connected by a paved footway. Future occupiers would be required to travel to nearby settlements for their day-to-day needs. While Litcham is located some 2.8 miles away this would only provide a limited broader range of services including a school, shop and children's centre, the route between the two villages is along roads subject to the national speed limit without a continuous footway, is unlit, flanked by embanked verges offering limited pedestrian refuge. Consequently, the distances involved and the local road conditions would discourage pedestrians and cyclists from using them to access the village, particularly in the hours of darkness and in periods of inclement weather. This would be especially so for those with reduced mobility or with young children.
11. The larger settlements of Dereham, Fakenham and Swaffham, which would provide for a greater range of services and employment opportunities, are some distance away and future occupiers of the dwellings would therefore be heavily reliant upon private motor vehicles to access everyday services in these locations.

12. Having regard to the above, the proposed development would not provide the opportunity to maximise the use of sustainable transport facilities, even when accepting that the site is in a rural location. Accordingly, the site is not well located due to its lack of infrastructure and limited accessibility to wider settlements. Notwithstanding this conclusion, I do not find that the appeal site would be isolated in the context of the Framework.
13. For the reasons stated above, the proposal would not be in an appropriate location having regard to local planning policy, in particular regard to its accessibility to services and facilities. Accordingly, I find conflict with Policies GEN 05 and HOU5 of the BLP which, collectively, and amongst other things, seek to direct development to sites within development limits and accessible locations subject to certain exceptions.

Character and appearance

14. Amongst other things, Policy HOU 05 of the BLP requires that development does not harm or undermine a visually important gap that contributes to the character and distinctiveness of the rural scene.
15. The appeal site forms part of a field which lies within a significant undeveloped area on one side of Litcham Road. The Breckland Landscape and Settlement Character Assessment 2022 (LSCA) describes Mileham as an *'Interrupted Rural Row Village, where substantial undeveloped gaps within an otherwise linear streetscape forms a key characteristic'*. The open, verdant nature of the site makes a positive contribution, in particular to those travelling through the village and the appreciation of the wider village setting. The erosion of gaps, such as this, are identified as having a negative influence on the form of Interrupted Rural Row Villages and their relationship with the surrounding landscape.
16. The proposal would not develop the entirety of the gap as a significant area of undeveloped land would remain beyond the proposed dwellings to the junction with Beeston Road. The village would therefore still exhibit characteristics of an Interrupted Rural Row Village, but to a reduced extent.
17. Notwithstanding that details of siting are reserved for subsequent approval the proposed dwellings could be arranged in a manner fronting Litcham Road, similar to existing dwellings opposite and to the east of the appeal site. Reserved matters approval could ensure the new houses are of a design, scale and position which would be in keeping with the built surroundings. As such the proposal, taking account of the established building line and surrounding form of development, would be read within the prevailing residential context and would not be incongruous, resulting in significant harm to the character or appearance of the area.
18. Nevertheless, at this outline stage, the introduction of residential development in this location would conflict with Criterion 4 of Policy HOU 05, which seeks to protect visually important gaps that contribute to the character and distinctiveness of the rural landscape. Whilst development would reduce the openness of the gap, a substantial separation would remain between the site and the junction with Beeston Road, and any future built form could reflect the prevailing pattern of development in the area. These factors moderate the extent of the impact. On balance, the proposal would result in a moderate level of harm at a localised scale, drawing the proposal into conflict with Policies HOU 05, GEN 02, COM 01 and ENV 05 of the

LP, which together require that development responds to local character, including the layout of buildings and open spaces and landscape character.

Habitats Sites

19. The proposal lies within the zones of influence (Zol) of habitats sites under the Conservation of Habitats and Species Regulations 2017 (as amended) (the Habitats Regulations). These include: The Broads SAC, North Norfolk Coast SAC/SPA, The Wash SPA and Ramsar sites, Breckland SPA and SAC, Norfolk Valley Fens SAC, Roydon Common and Dersingham Bog SAC/Ramsar sites, Breydon Water SPA and Ramsar sites and Ouse Washes SAC/SPA and Ramsar sites.
20. These habitat sites form a highly diverse network of national and internationally important habitat, plants and bird populations. Their key qualifying features include coastal habitats such as sand dunes, saltmarshes, mudflats, coastal lagoons and shingle structures; wetland habitats including fens, reedbeds, bogs, grazing marshes and open waterbodies; and heathland habitats such as dry heath, grass heath and inland dune systems. The sites are also designated for their importance to internationally significant bird populations, including breeding and wintering species such as terns, avocet, bittern, marsh harrier, geese, ducks and a variety of wading birds. In addition, they support numerous protected species and rare plants, including otter, spined loach, stonewort communities, characteristic fen flora and specialised peatland species. Together, these habitats and species contribute to a rich ecological resource of exceptional conservation value.
21. The Conservation of Species and Habitat Regulations 2017 require the Competent Authority to consider whether or not the proposal could adversely affect the integrity of the protected sites, either alone, or in combination with other plans and projects.
22. The potential effects of the proposed development relate to recreational pressure arising from additional residential occupation within the Zone of Influence. This includes potential disturbance effects at European designated sites associated with increased recreational activity such as walking, dog walking and general recreational use.
23. The Council has a strategic mitigation strategy (GIRAMS) in place, prepared collaboratively with other relevant local planning authorities and in conjunction with nature conservation organisations, including Natural England (NE). This sets out a strategy for the avoidance and mitigation of additional recreational disturbance through measures such as site management, visitor education and diversion of activity away from the most vulnerable locations. The appellant has submitted a legal obligation containing provision for the requisite contribution to fund the measures set out in the GIRAMS, which has been calculated based on a formula that recognises the recreational pressure arising from residential development.
24. The contribution would be necessary to make the development acceptable in planning terms, is directly related to the development and is fairly and reasonably related in scale and kind, in accordance with the CIL Regulations. As such, the GIRAMS contribution would count as mitigation towards maintaining the integrity of the habitats sites.
25. Having consulted NE, I am satisfied that the mitigation secured through the legal agreement would ensure that the proposal would avoid an adverse impact to the

integrity of the habitats sites. Accordingly, it would be compliant with Policy ENV02 of the BLP and the Framework insofar as it seeks to protect areas of particular importance relating to habitats sites. Consequently, there is no clear reason for refusing the development proposed in respect of such matters.

Other Considerations

26. The revised Framework has introduced National Decision-Making Policies (NDMP). NDMP S3 states that decisions on development proposals should apply a presumption in favour of sustainable development. This means:
27. a. Policy S4 in this Framework should be applied when considering development proposals within settlements;
- b. Outside settlements, policy S5 should be applied; and
- c. In all locations, development proposals that accord with both an up - to - date development plan and the decision - making policies in this Framework should be approved without delay.
28. NDMP S5 is relevant as Mileham does not have a settlement boundary. This sets out that limited forms of development should be approved outside settlements, stating that these should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
29. The Council cannot demonstrate the required supply of housing land with the evidence indicating the Council can demonstrate only 2.82 years. The proposal would therefore positively contribute to housing land supply to an evidenced unmet housing need to which I attribute substantial weight.
30. In respect of location the revised Framework places an emphasis on promoting sustainable patterns of movement, and where relevant, taking opportunities to improve walking, cycling and public transport. Although future occupiers would be likely to rely heavily on private motor vehicle travel to access day-to-day services, employment opportunities and facilities, the modest scale of the proposal means that it would not result in significant traffic generation.
31. For the reasons given above, the site is physically well related to the existing settlement of Mileham, where future occupiers would have access to some services and facilities. The proposal is modest in scale and could be accommodated by the infrastructure and services available locally. In addition, a bus stop is situated close to the appeal site. Whilst there is no formal pedestrian crossing, traffic levels observed during my site visit were relatively low, and I am satisfied that pedestrians would be able to access the bus stop without undue difficulty. These factors satisfy the key requirements of Policy S5(1)(j)(i).
32. NDMP HO7(1) states that substantial weight should be afforded to the benefits of providing homes that contribute towards an evidenced unmet housing need, particularly where they assist in meeting the needs of groups identified within NDMP HO1, including those requiring affordable housing. The appeal proposal would deliver six dwellings, including two affordable homes and I therefore attribute substantial weight to this.

33. In relation to the character of the area, NDMP DP3 requires development to respond appropriately to the character and features of the site and its setting so that it integrates with and enhances its surroundings. In respect of landscape, NDMP N2(1)(a) requires development proposals to have regard to landscape character and the natural beauty of the countryside, whilst identifying opportunities to conserve or enhance those qualities. As set out above, an open gap would be retained between the proposed development and the junction with Beeston Road. This would preserve a degree of separation and ensure that the sense of openness in the immediate vicinity is not wholly eroded. Consequently, the defining characteristics of Mileham as an Interrupted Rural Row village would be retained, albeit to a lesser extent.
34. Furthermore, whilst the Framework continues to place significant emphasis on responding positively to local character and context, the appeal is in outline form with all matters reserved. The precise siting, layout, scale, appearance and landscaping of the development would therefore be considered at the reserved matters stage. On the basis of the information before me, I am satisfied that the site is capable of accommodating the proposed development without resulting in unacceptable harm to the character and appearance of the area.

Planning Obligation

35. The statutory tests for planning obligations are set out in Regulation 122 of the Community Infrastructure Levy Regulations 2010 (as amended) (CIL). They must be necessary to make the development acceptable in planning terms, be directly related to the development, and be fairly and reasonably related in scale and kind to the development.
36. A fully executed Unilateral Undertaking (UU) pursuant to Section 106 of the Town and Country Planning Act 1990 has been provided which contains provisions in relation to the delivery of affordable housing, Biodiversity Net Gain (BNG) and GIRAMS. I am satisfied that the provisions accord with the CIL Regulations.

Other Matters

37. The proposed development site lies a short distance to the west of the medieval Mileham Castle, a Scheduled Monument. It is understood that medieval pottery has been found immediately to the southeast, a medieval jetton to the east and possible medieval earthworks have been recorded further to the east. Consequently, there is potential that archaeological interest (buried archaeological remains) may be present at the appeal site. It would therefore be necessary to include conditions in respect of archaeology.
38. Although the proposed development would result in the partial loss of a field, having reviewed the appellant's ecological submissions, the Council's ecology team has not objected to the proposal. In addition, the mitigation measures outlined in the appellant's Ecological Report and Ecological Update letter could be secured by condition.
39. I note that permission was previously granted for outline permission for the construction of 6 new dwellings including two affordable units² at the site at a time

² office reference: 3PL/2018/1564/O

when the Council previously could not demonstrate a Framework compliant housing land supply.

40. Interested parties have raised concerns in respect of flood risk, stating that the surrounding area has been subject to flooding events including the highway network. I note that this is not a matter of dispute between the Council and the Appellant. The information before me indicates that the appeal site itself is within Flood Zone 1, identified as being at very low risk of surface water flooding using Government mapping systems. A Flood Risk Assessment and Drainage Strategy Report have been provided, along with a SuDS & Surface Water report. The Council indicates that sufficient infiltration testing has been undertaken at the site and the drainage strategy has been provided. Whilst it is noted the erection of six dwellings would increase surface water flood risk it is considered sufficient information has been provided, along with acceptable mitigation to be provided, in order to help reduce the risk of surface water flooding. This matter could be appropriately dealt with via conditions. I have no reason to reach an alternative view.
41. I have considered all other matters raised by interested parties. However, it is noted that these did not form part of the Council's reason for refusal and based on the information before me, I have no reason to conclude otherwise.

Conditions

42. I have considered conditions suggested by the Council having regard to NDMP DM6 of the Framework that states conditions should only be imposed where they are necessary to make the development acceptable in planning terms, relevant to the development and planning considerations generally, sufficiently precise to make them capable of being complied and enforced and reasonable in all other respects. Where necessary I have made changes to the wording of conditions in the interests of precision and clarity and have added conditions where necessary.
43. I have imposed conditions related to outline and reserved matters timescales and plans, in the interests of certainty and the avoidance of doubt. Whilst the Council has suggested a list of documents as an outline consent would not normally list or expressly approve supporting documents such as indicative plans, Health and Planning Protocol, the Planning and Design & Access Statement etc. These documents are submitted in support of the application and inform the decision-making process but do not form part of the approved plans unless specifically referenced by condition. I have, however, included reference to the flood risk assessment and drainage details.
44. Access is a reserved matter and therefore I have not imposed the suggested conditions in respect of access and visibility splays. Similarly, I have not included conditions for the details of garages, vehicle spaces and turning as such matters would be considered as a reserved matter in considering layout. In the interests of highway safety and promoting sustainable transport it is necessary to include the condition for off-site highway improvement works as a Grampian condition.
45. Conditions are necessary to ensure any contamination found during construction is appropriately dealt with in the interests of protecting human health and the environment.

46. Conditions relating to ecology, habitat management plan and a lighting strategy which are reasonable and necessary in the interests of protecting and enhancing the natural environment.
47. Based on the information available, the proposal is subject to statutory BNG. The submitted details indicate that the proposed scheme would lead to the loss of habitat, but the Council is satisfied that there are sufficient areas within the site to achieve 10% BNG and I concur. It is not necessary to impose a condition requiring the submission of a biodiversity gain plan (BGP) as the deemed biodiversity gain condition, under paragraph 13 of Schedule 7A of the Town and Country Planning Act ensures that the development cannot commence until a BGP has been submitted to an approved by the local planning authority.

Planning Balance and Conclusion

48. Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires that applications for planning permission must be determined in accordance with the development plan unless material considerations indicate otherwise.
49. For the reasons set out above the proposal would conflict with the development plan, but material considerations, including the Framework, indicate that a decision should be made other than in accordance with it.
50. The identified locational and landscape harms would attract moderate weight against the proposal. However, these harms must be considered alongside the substantial benefits arising from the delivery of market and affordable housing in circumstances where the Council is unable to demonstrate a five-year supply of deliverable housing sites. In this regard, I find that the proposal attracts substantial positive weight consistent with NDMP HO7(1) and the Framework's objective of significantly boosting the supply of homes.
51. There would be short term economic and social benefits during the construction phase and longer term economic and social benefits with household expenditure in the local economy and supporting surrounding services and facilities.
52. Following an AA, the proposal would not adversely affect habitats sites and having regard to the Framework there are no protected areas or assets of particular importance where the Framework provides a strong reason for refusing the development.
53. Drawing all matters together, I conclude that the benefits of granting planning permission would not be substantially outweighed by any adverse effects when assessed against the national decision-making policies of the Framework taken as a whole. Accordingly, the proposal satisfies the requirements of NDMP5(j)(i). In these circumstances, the Framework indicates that planning permission should be granted.
54. For the reasons given above, and having regard to all other matters raised, the appeal should succeed.

R. Gee

INSPECTOR

Schedule of conditions

1. Details of the access, appearance, landscaping, layout, and scale, ("the reserved matters") shall be submitted to and approved in writing by the local planning authority before any development takes place and the development shall be carried out as approved.
2. Application for approval of the reserved matters shall be made to the local planning authority not later than three years from the date of this permission.
3. The development shall be carried out in accordance with the following: Site location plan and Flood Risk Assessment and Drainage Strategy Dated June 2025.
4. No works above slab level shall commence on site until detailed drawings for the off-site highway improvement works, as indicated on Drawing no. 0224 21A (Indicative site plan for Outline Planning) and within the Planning Statement (v2), has been submitted to and approved in writing by the Local Planning Authority. The agreed scheme shall be implemented in full in accordance with a timetable first agreed in writing by the Local planning Authority.
5. Prior to the commencement of the development, the following details shall be submitted to and approved in writing by the Local Planning Authority:
 - A. Desk Study - A desk study and risk assessment to determine the risk of any contamination on the site, whether or not it originates on the site. The desk study and risk assessment must be undertaken by competent persons and a written report of the findings must be produced. The report of the findings must include an assessment of the potential risks to human health, property (existing or proposed) including buildings, crops, livestock, pets, woodland and service lines and pipes, adjoining land, groundwaters and surface waters, ecological systems, archaeological sites and ancient monuments.
 - B. Site Investigation - A site investigation and risk assessment to determine the nature and extent of any contamination on the site, whether or not it originates on the site. The investigation and risk assessment must be undertaken by competent persons and a written report of the findings must be produced. The report of the findings must include (i) the same details as in part A above (ii) a survey of the extent, scale and nature of contamination and (iii) an appraisal of remedial options, and proposal of the preferred option(s).
 - C. Remediation Scheme - A detailed remediation scheme to bring the site to a condition suitable for the intended use by removing unacceptable risks to human health, buildings and other property and the natural and historical environment. The scheme must include all works to be undertaken, proposed remediation objectives and remediation criteria, timetable of works and site management procedures. The scheme must ensure that the site will not qualify as contaminated land under Part 2A of the Environmental Protection Act 1990 in relation to the intended use of the land after remediation.
 - D. Implementation of Approved Remediation Scheme - The approved remediation scheme must be carried out in accordance with its terms prior to the

commencement of development, unless otherwise agreed in writing by the Local Planning Authority. The Local Planning Authority must be given two weeks written notification of commencement of the remediation scheme works.

Following completion of measures identified in the approved remediation scheme, a verification report that demonstrates the effectiveness of the remediation carried out must be submitted to and approved in writing by the Local Planning Authority.

6. In the event that contamination is found at any time when carrying out the approved development that was not previously identified it must be reported in writing immediately to the Local Planning Authority. An investigation and risk assessment must be undertaken in accordance with details to be agreed in writing with the Local Planning Authority. Where remediation is necessary, a remediation scheme must be submitted to and approved in writing by the Local Planning Authority. Following completion of measures identified in the approved remediation scheme a verification report shall be submitted to and approved in writing by the Local Planning Authority.
7. Prior to any works above slab level, a Biodiversity Enhancement Strategy for protected, Priority and threatened species, prepared by a suitably qualified ecologist in line with the recommendations of the Ecological Assessment (Hopkins Ecology, July 2025), shall be submitted to and approved in writing by the local planning authority.

The content of the Biodiversity Enhancement Strategy shall include the following:

- a) Purpose and conservation objectives for the proposed enhancement measures;
- b) detailed designs or product descriptions to achieve stated objectives;
- c) locations of proposed enhancement measures by appropriate maps and plans (where relevant);
- d) persons responsible for implementing the enhancement measures; and
- e) details of initial aftercare and long-term maintenance (where relevant).

The works shall be implemented in accordance with the approved details shall be retained in that manner thereafter.

8. Prior to the first occupation of the hereby approved dwellings, a “lighting design strategy for biodiversity” in accordance with Guidance Note 08/23 (Institute of Lighting Professionals) shall be submitted to and approved in writing by the local planning authority. The strategy shall:
 - a) identify those areas/features on site that are particularly sensitive for bats and that are likely to cause disturbance in or around their breeding sites and resting places or along important routes used to access key areas of their territory, for example, for foraging; and
 - b) show how and where external lighting will be installed so that it can be clearly demonstrated that areas to be lit will not disturb or prevent the above species using their territory or having access to their breeding sites and resting places.

All external lighting shall be installed in accordance with the specifications and locations set out in the scheme and maintained thereafter in accordance with the scheme. Under no circumstances should any other external lighting be installed without prior consent from the local planning authority.

9. Prior to commencement of development a Habitat Management and Monitoring Plan (HMMP) for on-site enhancements, prepared in accordance with the approved Biodiversity Gain Plan, shall be submitted to, and approved in writing by the local authority. It shall include:
 - a) the roles and responsibilities of the people or organisation(s) delivering the HMMP;
 - b) the planned habitat creation and enhancement works to create or improve habitat to achieve the on-site significant enhancements in accordance with the approved Biodiversity Gain Plan;
 - c) the management measures to maintain habitat in accordance with the approved Biodiversity Gain Plan for a period of 30 years from the completion of development;
 - d) the monitoring methodology in respect of the created or enhanced habitat to be submitted to the local planning authority; and
 - e) details of the content of monitoring reports to be submitted to the local planning authority including details of adaptive management which will be undertaken to ensure the aims and objectives of the Biodiversity Gain Plan are achieved. Notice in writing shall be given in writing to the Council when the: initial enhancements, as set in the HMMP, have been implemented; and habitat creation and enhancement works, as set out in the HMMP, have been completed after 30 years. The created and/or enhanced habitat specified in the approved HMMP shall be managed and maintained in accordance with the approved HMMP. Monitoring reports shall be submitted in years 1, 2, 5, 10, 15, 20, 25, and 30 to the Council, in accordance with the methodology specified in the approved HMMP.
10. No development, other than demolition and site clearance, shall commence until a site investigation and risk assessment has been undertaken to assess the nature and extent of any contamination on the site. The investigation and risk assessment shall be carried out by a suitably qualified competent person and a written report of the findings shall be submitted to and approved in writing by the Local Planning Authority. The report shall include:
 - a) a survey of the extent, scale and nature of contamination;
 - b) an assessment of the potential risks to:
 - i. human health;
 - ii. property (existing or proposed), including buildings, crops, livestock, pets, woodland and service lines and pipes;
 - iii. adjoining land;
 - iv. groundwaters and surface waters;
 - v. ecological systems; and
 - vi. archaeological sites and ancient monuments;
 - c) an appraisal of remedial options and proposal of the preferred remediation strategy.

Where remediation measures are identified as necessary, a detailed remediation scheme shall be submitted to and approved in writing by the Local Planning

Authority. The approved remediation scheme shall thereafter be implemented in full prior to the first occupation of the development.

Following completion of the approved remediation works, a verification report demonstrating the effectiveness of the remediation shall be submitted to and approved in writing by the Local Planning Authority prior to first occupation of the development.

If, during the course of development, contamination not previously identified is found to be present, no further development shall take place until a remediation strategy detailing how the unexpected contamination shall be dealt with has been submitted to and approved in writing by the Local Planning Authority. The remediation strategy shall thereafter be implemented as approved.

11. If, during construction of the hereby approved development, any features of archaeological interest are discovered, works in the affected area shall cease with immediate effect and the local planning authority shall be notified in writing within five working days. Development affecting the discovered remains shall not recommence until a programme of archaeological investigation and recording has been submitted to and approved in writing by the local planning authority and subsequently carried out in accordance with the approved details.

*****End of Schedule*****